

From: [Raynese Grant](#)
To: [Raynese Grant](#)
Subject: FW: Norwegian Cruise Line Covid Refund Policy Information
Date: Thursday, September 2, 2021 8:32:59 AM
Attachments: [image001.png](#)
[NCL Letter 2-19-2021.pdf](#)
[NCL Guest Relations Response to 2-19-2021 Letter.pdf](#)
[NCL Legal Department Letter 5-10-2021.pdf](#)
[NCL Email Response 6-5-2021.pdf](#)

From: Danette Lilja <danette@northvalelegal.com>
Sent: Thursday, August 26, 2021 3:23 PM
To: Daniel Maffei <dmaffei@fmc.gov>; Rebecca Dye <Rdye@fmc.gov>; Michael A. Khouri <mkhouri@fmc.gov>; Clark Jennings <Cjennings@fmc.gov>; Carl Bentzel <cbentzel@fmc.gov>
Cc: Danette Lilja <danette@northvalelegal.com>
Subject: Norwegian Cruise Line Covid Refund Policy Information

Dear Distinguished Commission:

This law firm represents a family of twelve Norwegian Cruise Lines ("NCL") passengers affected by NCL's COVID refund policy. It is my understanding that the cruise lines' COVID refund policies are being investigated and discussed as of the date of this email. Therefore, I respectfully bringing to your attention my clients' ongoing struggle with NCL as it relates to NCL's COVID refund policy, as an example of the impact the cruise lines' COVID refund policies have had on average Americans.

On February 19, 2021, the attached letter of the same date, and supporting documentation, was sent to Norwegian Cruise Lines' ("NCL") customer relations department, regarding the cancellation of my clients' 7-day Hawaiian Island cruise on the Pride of America; sailing dates: 3/21/2020 – 3/28/2020. The same day, I received the attached response from NLC – see NCL Response to 2-19-2021 Letter.

On May 10, 2021, I mailed a follow-up letter to NCL's legal department asking them to please contact me regarding NCL's COVID refund policy – see NCL Legal Department Letter 5-10-2021. In response to that letter, instead of being contacted by NCL's legal department as requested, I received the attached email from Ms. Sonia Breathwit, a NCL Resolution Coordinator – see NCL Email Response 6-5-2021.

I am cognizant of this Commission's time; therefore, I am providing the attached information, to succinctly bring to this Commission's attention the impact – both emotionally and financially – NCL's COVID refund policy has had on just one American family. A family that missed out on a full refund simply because it relied on NCL's "Peace of Mind" policy, a policy that in its implementation penalized passengers affected by the COVID pandemic if they acted prudentially and proactively instead of waiting until the cruise industry was pressured into giving full refunds. As Ms. Breathwit's response states, NCL will not refund to my clients their fares because my clients cancelled their cruise between 9:50 – 10:11 am, under the "Peace of Mind" policy, and the announcement regarding full refunds was not made until 3 pm that same day. That approximate 5 hours cost them almost \$40,000.00.

I, and my clients, recognize that NCL is offering them an equivalent amount in future cruise credits; however, as explained in the February 19, 2021, letter, the very purpose of this family's cruise has been rendered impossible due to the patriarch's severe and advanced dementia. He was in good health when the original cruise was booked, but that is no longer the case, and the family simply cannot fathom taking this cruise now without the very man on whose dream the cruise was based.

Finally, I am not asking, nor do I expect, this Commission to intervene on my clients' behalf or directly resolve this issue for my clients. I am simply putting a face on one American family negatively impacted by one of the cruise line's COVID refund policy.

Thank you for your time and consideration with this matter. And, thank you for your time and consideration as it relates to your important investigation.

Sincerely,

Danette

Danette L. R. Lilja
Managing Member

Northvale Legal Services LLC



Office Hours: Monday – Thursday: 9 am – 4 pm (By appointment only); Fridays: Closed.

PO Box 1863
Monument, CO 80132

Direct: 719.387.9707

Fax: 719.212.4070

danette@northvalelegal.com

www.northvalelegal.com

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